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Case Number: 25NNCV07323 Hearing Date: August 28, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: August 28, 2026

Case No: 25NNCV07323 Trial Date: Not yet set

Case Name: Ghaffari v. US Bank National Association, et al.

DEMURRER; MOTION FOR PRELIMINARY INJUNCTION

[CCP § 430.10 subds. (e) and (f)]

Moving Party: [Demurrer] Defendants, Edgestone Real Estate, Inc. and Sebastian Stofenmacher

[Preliminary Injunction] Plaintiffs, Linda Ghaffari and Gina Ghaffari

Responding Party: [Demurrer] Plaintiffs, Linda Ghaffari and Gina Ghaffari

[Preliminary Injunction] Defendants, Nationstar Mortgage LLC dba Mr. Cooper, U.S. Bank, N.A., as trustee for Merrill Lynch First Franklin Mortgage Loan Trust 2007-1, and Mortgage Electronic Registration Systems, Inc.

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

An order enjoining Defendants from enforcing the writ of the possession issued in LASC Case No. 25PDUD03009.

CAUSES OF ACTION: from First Amended Complaint

- 1) Quiet Title
- 2) Wrongful Foreclosure
- 3) Cancellation of Instruments
- 4) Violation of California Homeowner Bill of Rights
- 5) Misrepresentation
- 6) Injunctive Relief

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States" and of [f]acts and propositions that are not reasonable subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evidence Code, § 452, subds. (c) and (h).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885.)

Pursuant to Defendants' request, the Court takes judicial notice of: (1) Trustees Deed Upon Sale dated September 17, 2025, and recorded September 22, 2025, in the Official Records for the County of Los Angeles, as document no. 20250651964; (2) this Court's August 14, 2026 Minute Order; and (3) this Court's Judgment of Dismissal entered on August 17, 2026.

SUMMARY OF FACTS:

The FAC alleges that Plaintiff Linda Ghaffari ("Linda") is the owner of real property located at 9531 Via Salerno, Unit 33, Burbank, California 91504. Plaintiff Gina Ghaffari ("Gina") is Linda's daughter and resides at the property. The FAC alleges that in 2007, Linda obtained a mortgage loan secured by a Deed of Trust recorded against the property. The loan was placed into default in August 2011. Plaintiffs allege that they submitted approximately 19 loss mitigation applications between 2014 and 2024, each of which was denied or not approved. The FAC alleges that Defendants failed to provide a consistent or meaningful pathway to resolution. Defendants conducted a foreclosure auction on August 26, 2025, and a Trustee's Deed Upon Sale was recorded on September 22, 2025. Plaintiffs allege various irregularities throughout the bankruptcy, foreclosure and unlawful detainer processes and allege that the foreclosure was invalid.

DEMURRER:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer for uncertainty lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP, § 430.10, subd. (f).)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616 [disapproved on other grounds].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading, but it rather is directed only at uncertainty existing in the allegations already made. (People v. Taliaferro (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in Jefferson v. J.E. French Co. (1960) 54 Cal.2d 717, 719-720 [statute of limitations question].)

Where a complaint is sufficient to state a cause of action and to apprise a defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 ["A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet"].)

First Cause of Action, Quiet Title

To state a cause of action for quiet title, "[t]he complaint shall be verified and shall include all of the following:

(a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any.

(b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.

(c) The adverse claims to the title of the plaintiff against which a determination is sought.

(d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.

(e) A prayer for the determination of the title of the plaintiff against the adverse claims."

(CCP, § 761.020.)

A quiet title cause of action also requires a full discharge of the debt owed. (*Aguilar v. Bocci* (1974) 39 Cal.App.3d 475, 477-478.) To prevail in an action to quiet title, the plaintiff must prove title superior to that of defendant. (*Gerhard v. Stephens* (1968) 68 Cal.2d 864, 918.)

The FAC fails to allege a quiet title cause of action against the moving defendants, Edgestone Real Estate, Inc. ("Edgestone") and Sebastian Stofenmacher ("Stofenmacher"). Edgestone and Stofenmacher are the real estate brokers who were hired to sell the property following the foreclosure sale. The FAC contains no facts alleging that the moving parties assert any legal or equitable right, title, lien, or interest in the Property. (See *Orcilla v. Big Sur, Inc.* (2016) 224 Cal.App.4th 982, 1009.) Thus, the FAC fails to state a claim for quiet title against either Edgestone or Stofenmacher.

The Demurrer is SUSTAINED as to the first cause of action.

Second Cause of Action, Wrongful Foreclosure

The necessary elements for wrongful foreclosure are: (1) that the mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to the power of sale in a mortgage; (2) the mortgagor was harmed; and (3) in cases where the mortgagor challenges the sale, the mortgagor tendered the amount of the secured indebtedness or was excused from tendering. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 408.)

There are no allegations in the FAC that the moving parties were involved in the foreclosure process itself, only in the sale of the property following foreclosure. The first element of wrongful foreclosure is definitionally restricted to the conduct of the "trustee or mortgagee." (*Miles*, supra, 236 Cal.App.4th at p. 408.) A wrongful foreclosure cause of action is thus structurally limited to the parties who conducted the foreclosure, namely the trustee, mortgagee, or their authorized agents in the foreclosure process. The claim does not extend to listing agents engaged post-foreclosure to market and sell the already-foreclosed property. There is no basis for a wrongful foreclosure claim against the real estate brokers here. Thus, the FAC fails to state a claim for wrongful foreclosure against either Edgestone or Stofenmacher.

The Demurrer is SUSTAINED as to the second cause of action.

Third Cause of Action, Cancellation of Instruments

The necessary elements for cancellation of instrument are: (1) a written instrument; (2) a reasonable apprehension that it may cause serious injury to someone; (3) as to whom it is void or voidable. (Civ. Code § 3412.) A plaintiff must also tender to state a claim for cancellation. (See, e.g., *Weger v. Rocha* (1934) 138 Cal. App. 109, 116 ["in the cancellation or rescission of contracts, it is incumbent upon the parties seeking rescission to restore everything of value that has been received."].)

The FAC contains no allegations that would subject Edgestone or Stofenmacher to liability for cancellation of instruments. A cancellation of instruments remedy is fundamentally directed at parties who hold, claim, or benefit from the instrument sought to be canceled, not at real estate agents who merely facilitated a transaction. Neither Edgestone nor Stofenmacher are alleged to have any direct interest in the disputed instrument. Thus, the FAC fails to state a claim for cancellation of instrument against either Edgestone or Stofenmacher.

The Demurrer is SUSTAINED as to the third cause of action.

Fourth Cause of Action, Violation of California Homeowner Bill of Rights

Plaintiffs do not allege any conduct or facts demonstrating how Edgestone or Stofenmacher are liable for a violation of the California Homeowner Bill of Rights. (FAC, ¶¶ 79-86.) The Homeowner Bill of Rights obligations, protections, and private rights of action are expressly limited to specific parties involved in the mortgage servicing and foreclosure process, namely mortgage servicers, mortgagees, trustees, beneficiaries, and their authorized agents, acting in connection with the nonjudicial foreclosure process. (Civil Code, § 2924.12.) Real estate agents hired post-foreclosure to list and sell the property fall entirely outside the statute's scope. Thus, the FAC fails to state a claim for violation of the California Homeowner Bill of Rights against either Edgestone or Stofenmacher.

The Demurrer is SUSTAINED as to the fourth cause of action.

Fifth Cause of Action, Negligent Misrepresentation

The elements of a cause of action for negligent misrepresentation include "[m]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another's reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage." (Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc. (2004) 115 Cal.App.4th 1145, 1154, quotation marks omitted.) To properly allege fraud against a corporation, the plaintiff must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Plaintiffs do not allege any misrepresentations made by either Edgestone or Stofenmacher. (FAC, ¶¶ 87-94.) Under California law, the circumstances constituting fraud must be pleaded with particularity, including facts supporting each element of the alleged fraudulent misrepresentation. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) The general policy of "liberal construction" of the pleadings does not apply to fraud claims. (Ibid.) The FAC fails to identify any specific misrepresentation attributable to Edgestone or Stofenmacher, much less allege the circumstances of any such representations with the requisite particularity. Thus, the FAC fails to state a claim for fraudulent misrepresentation against either Edgestone or Stofenmacher.

The Demurrer is SUSTAINED as to the fifth cause of action.

Sixth Cause of Action, Injunctive Relief

Because Plaintiffs' quiet title, wrongful foreclosure, cancellation of instruments, violation of Homeowner Bill of Rights, and negligent misrepresentation causes of action fail, so too does the derivative request for injunctive relief.

The Demurrer is SUSTAINED as to the sixth cause of action.

Although leave to amend should be freely granted, "[t]he burden is on the plaintiff to demonstrate the manner in which the complaint can be amended. (Ross v. Creel Printing & Publishing Company (2002) 100 Cal.App.4th 736, 748.) "To carry its burden, plaintiff must show the manner it can amend its complaint and demonstrate how that amendment will change the legal effect of the pleading." (Community Assisting Recovery, Inc. v. Aegis Security Insurance Co. (2001) 92 Cal. App. 4th 886, 895, citation omitted.)

The Court previously sustained Edgestone and Stofenmacher's demurrer to the Complaint on the same grounds as discussed above, and afforded Plaintiffs an opportunity to amend. (5/1/2026 Minute Order.) However, the amended complaint does not cure the deficiencies.

Accordingly, the Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

MOTION FOR PRELIMINARY INJUNCTION

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial; and (2) a balancing of the "irreparable harm" that the plaintiff is likely to sustain if the injunction is denied compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (CCP, § 526, subd. (a); 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283.)

A court's determination is guided by a "mix" of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction. (Butt v. State of California (1992) 4 Cal.4th 668, 678.) However, a trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Ibid.)

The court must consider both factors. The two factors are a sliding scale – the stronger the showing of probability of prevailing, the lesser showing is required for irreparable harm. (Butt v. California, supra, 4 Cal.4th at p. 678; The Right Side Coalition v. Los Angeles Unified School District (2008) 160 Cal.App.4th 336 (reversing denial of preliminary injunction based solely on balancing of hardships without considering probability of prevailing). The plaintiff must make some showing of each factor. (Jessen v. Keystone Savings & Loan Assn. (1983) 142 Cal.App.3d 454, 459.)

Here, Plaintiffs cannot establish any possibility of prevailing on the merits. The Court has sustained, without leave to amend, all named Defendants' demurrers to the entire FAC. All Defendants have been dismissed from this action. A court may not issue a preliminary injunction if the plaintiff cannot possibly prevail on the merits even if a strong showing of irreparable harm has been made. (Butt v. California, supra, 4 Cal.4th at p. 677-78.)

Thus, the Motion for Preliminary Injunction is DENIED.

RULING:

Defendants, Edgestone Real Estate, Inc. and Sebastian Stofenmacher Demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND.

Counsel for moving party is ordered to prepare a Judgment of Dismissal and submit it on eCourt by 2:00 PM today in accordance with this order.

Plaintiffs Linda Ghaffari and Gina Ghaffari's Motion for Preliminary Injunction is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.